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GBS PROCESS FLOW

Misconduct — Organisational Disciplinary Process Flow

Labour Relations Act 66 of 1995 and the Code of Good Practice: Dismissal, 2025 (GN 3470, GG 53294) · As at 19 October 2026

PREPARED FOR
[Client / Team]

PREPARED BY
Global Business Solutions

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DOCUMENT STATUS

Working document for legal review — not legal advice.

LRA = in force; Code = Code of Good Practice: Dismissal, 2025; CL = case law; BP = best practice.

01 / MISCONDUCT DISCIPLINARY PROCESS

Purpose, status and reading notes

This flow tells an employer what to do, by when, and who hands off to whom, from the moment possible misconduct comes to light until the matter closes and lessons feed back into controls. It follows a generic disciplinary process in this order:

- preliminary investigation of the incident;
- the decision whether to suspend the employee pending the outcome of the enquiry, and the correspondence that goes with it;
- gathering the evidence;
- drafting the notice to attend, and issuing it at least 48 hours before the enquiry;
- the enquiry itself: welcome and introductions, confirming that the employee's preliminary rights were met, reading the charges and taking a plea, opening statements, each party's evidence in chief and the other's cross-examination, and closing statements;
- the chairperson's finding on guilt, mitigation and aggravation submissions, and the sanction;
- communication of the outcome and of the employee's rights to refer the matter.

The flow assumes no collective agreement or bargaining council procedure applies, and must be adjusted where one does.

Legal status. The fairness of a dismissal is governed by the LRA (ss.185, 186(1), 188 and 192). Disciplinary action short of dismissal, including suspension and warnings, is tested as an unfair labour practice under s.186(2)(b). The Code of Good Practice: Dismissal, 2025 ("the Code"), issued under s.203(2A) of the LRA (GN 3470, GG 53294) and in effect from 4 September 2025, repealed the Schedule 8 Code of Good Practice: Dismissal and the 1999 Code of Good Practice on Operational Requirements. The Code is guidance, not statute, but anyone considering whether a dismissal was for a fair reason or in accordance with a fair procedure must take it into account

(s.188(2), s.203(3)). The Code does not deal with precautionary suspension or with the order of proceedings at an enquiry; both are governed by case law and internal policy. A search on 29 September 2026 found no amendment to the Code since publication; status should be re-checked before this flow is adopted.

Labels used throughout.

- **LRA** = the Labour Relations Act and other statutes; binding now.
- **Code** = the Code of Good Practice: Dismissal, 2025 (cited by item number); must be taken into account, and departures must be justified.
- **CL** = a principle from case law, cited by name, court and year. Verify the citation and any later authority before using it in advice.
- **BP** = best practice or internal control; not a statutory deadline. Adopt as policy so it becomes binding internally.

Design principle. Internal targets sit inside every statutory limit, and the clock starts on the day any manager learns of the incident, because unexplained delay weakens both the case and any suspension. The flow screens first and charges second: the label chosen (misconduct, incapacity, poor performance or probation) decides which test applies. The **48-hour minimum** for the notice to attend is a floor, not a target: the Code's test is a reasonable period to prepare (item 11(4)(b)), so complex matters get longer.

Six interpretation points that shape the flow.

- **The weight of the Code.** The Code is intentionally general and departures "may be justified in proper circumstances" (item 2(1)); it does not alter rights under a collective agreement (item 2(3)); and it must not be read as requiring small businesses to do what is impractical (item 3). A recognition agreement or bargaining council procedure therefore prevails over this flow. The employer may depart from its own rules and procedures if there is a justification (item 6(7)): record that justification at the time.
- **Counting time.** LRA referral periods (30 days for a dismissal, 90 days for an unfair labour practice, s.191(1)(b)) are calendar days under the Interpretation Act 33 of 1957 s.4. The Rules for the Conduct of Proceedings before the CCMA, 2023 (rule 3) count time in calendar days, excluding the first day and including the last; if the last day falls on a Saturday, Sunday or public holiday, the period ends on the next working day. The former 16 December to 7 January exclusion no longer applies. Internal steps in this flow use working days. The 48-hour notice period runs from proven service of the notice to the start of the enquiry; as policy, it must include at least two full working days, so a notice served on Friday afternoon does not support a Monday enquiry.
- **Precautionary suspension is not a sanction.** The Constitutional Court has held that a precautionary suspension is not disciplinary action; its fairness turns on whether there is a fair reason, the prejudice to the employee, and whether it is on full pay, and a prior hearing is not a legal requirement (CL: *Long v South African Breweries*, CC 2019). The Labour Court has nonetheless favoured



giving the employee an opportunity to make representations (CL: *SAPU v National Commissioner of the SAPS*, LC 2005; *Mogothle v Premier of the North West Province*, LC 2009). Footnote 2 of the Code lists "suspension" among graduated disciplinary measures: that is unpaid suspension as a sanction, a different thing, available only after a fair process and where the code or contract provides for it (verify).

- **The enquiry is not a criminal trial.** The Code requires "a genuine dialogue and an opportunity for reflection" (item 11(1)) and says an enquiry need not be formal (item 11(3)). The adversarial sequence in Phase 4 (opening, evidence in chief, cross-examination, closing) is used because it is the clearest way to give an adequate opportunity to respond where facts are disputed. It should be run fairly and without technicality (CL: *Avril Elizabeth Home v CCMA*, LC 2006). For admitted or simple matters the chair may shorten it, with reasons.
- **Misconduct, incapacity or something else.** Misconduct is a culpable breach of a rule or standard (items 7 to 10). Poor work performance after probation (items 19–20), ill health and injury (item 21(1)–(5)), incompatibility (item 21(7)) and probation (items 14–18) have their own tests. Dependency on alcohol or drugs may call for counselling and rehabilitation (item 21(4)). An employee on a COIDA claim is handled with the COIDA flow and RRR Regulations reg 10(1)(m)–(n). Action against someone who has made a protected disclosure risks an automatically unfair dismissal (s.187(1)(h)): run the PDA flow in parallel.
- **Who is the employer, and who is being disciplined.** A temporary employment service is the employer of the workers it places (s.198(2)); the client reports the conduct and may ask for removal, but the TES runs the discipline, subject to the deeming provisions for lower-earning placed workers (s.198A: placed workers earning below the BCEA threshold, R269 600.90 p.a. from 1 May 2026, are deemed employees of the client after three months unless the placement is a genuine temporary service). Discipline of a trade union representative or office-bearer should not be instituted without first informing and consulting the union (item 11(7)). Public-service employers follow their bargaining council resolutions, which set their own suspension and hearing time limits.

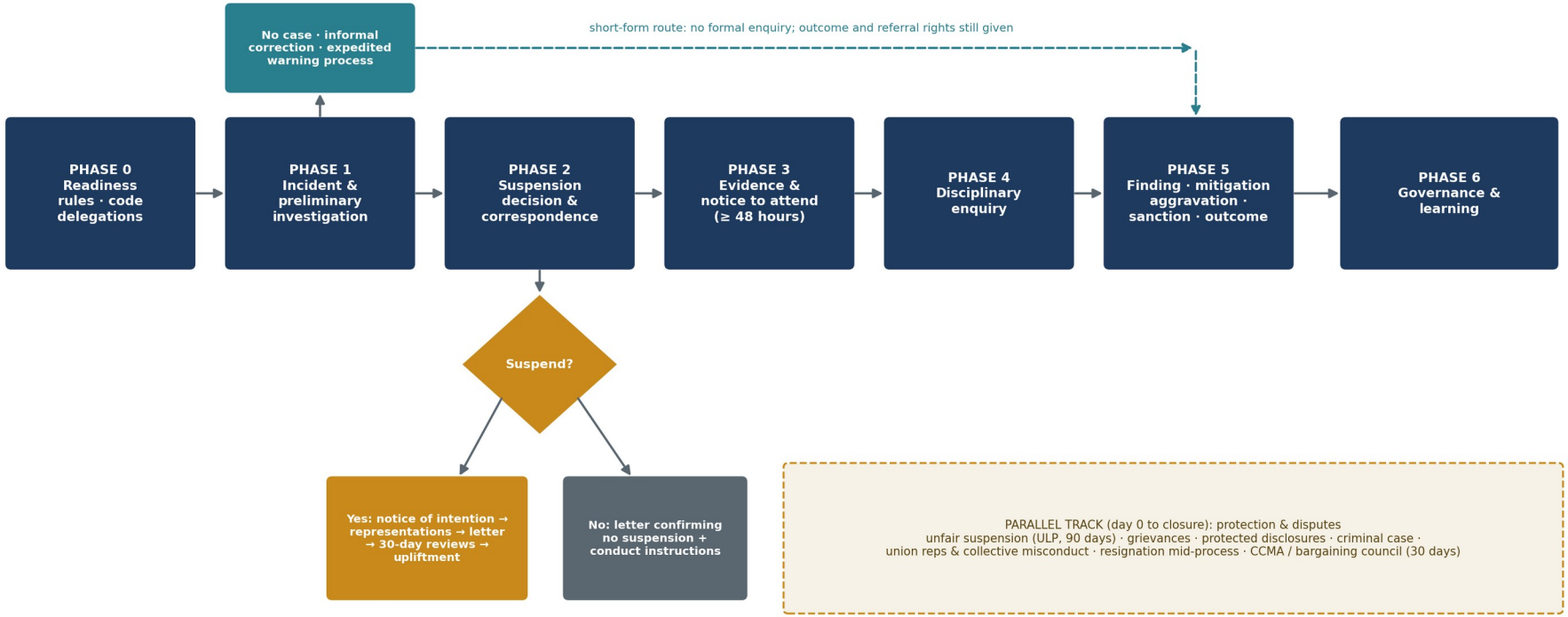
Roles used. Employee Relations Officer (ERO, the case owner; in smaller organisations the HR manager); Line Manager (LM); Investigator (INV); Initiator (INI, the employer party at the enquiry); Chairperson (CHR, independent of the matter); Appeal Chairperson (APC); Legal Adviser (LA); HR Manager (HR); Payroll (PAY); IT and Security (ITS); Senior Sign-off (SSO, e.g. HR Director or COO; the Board chair where an executive is implicated); Board, Remuneration or Social and Ethics Committee (BOARD). The employee (EMP) and their representative (REP: a fellow employee or trade union representative, item 11(4)(c)); together, "the employee party". External: trade union (TU); CCMA or bargaining council (CCMA/BC); SAPS.



Master flow at a glance

Every report feeds one intake. Phase 1 ends with the route decision; only matters where dismissal is a possible outcome go through the full enquiry. Phase 2 (suspension) can run alongside Phases 1 and 3 and stays open until the outcome. The short-form route for informal correction and warnings joins at Phase 5, so the outcome and referral rights are always given. The protection and disputes track is not a phase: it opens on day 0 and runs until any referral period has run.




No case · informal correction · expedited warning process
short-form route: no formal enquiry; outcome and referral rights still given
PHASE 0 Readiness rules · code delegations
PHASE 1 Incident & preliminary investigation
PHASE 2 Suspension decision & correspondence
PHASE 3 Evidence & notice to attend (≥ 48 hours)
PHASE 4 Disciplinary enquiry
PHASE 5 Finding · mitigation aggravation · sanction · outcome
PHASE 6 Governance & learning
Suspend?
Yes: notice of intention → representations → letter → 30-day reviews → upliftment
No: letter confirming no suspension + conduct instructions
PARALLEL TRACK (day 0 to closure): protection & disputes
unfair suspension (ULP, 90 days) · grievances · protected disclosures · criminal case ·
union reps & collective misconduct · resignation mid-process · CCMA / bargaining council (30 days)

The enquiry sequence (Phases 4 and 5)



Integrated swimlane view

Read each phase column top to bottom to see who acts and who hands off; read each lane left to right to see one party's whole job. The ERO lane is the spine: every other lane connects to it, and the protection and disputes track runs underneath from day 0 until the referral windows close.

	0 Readiness	1 Incident & prelim. invest.	2 Suspension & correspondence	3 Evidence & notice ≥48h	4 Enquiry	5 Finding → sanction → outcome	6 Governance
ERO (spine)	Code, register, delegations	Log; appoint INV; route decision	Suspension test; issue letters	Bundle; serve notice; proof of service	Venue, interpreter, record, witnesses	Outcome letter; registers; retention	Dashboard; root cause
Line manager	Know rules; trained	Make safe; report same day	Statement; enforce no-contact terms	Documents & witness details	Witness if called	Implement sanction	Apply lessons
Investigator	Panel pre-vetted	Initial facts; preliminary report	Suspension recommendation	Full evidence; chain of custody	Witness on investigation	—	—
Initiator / LA	Approve code	Screen: crime, PDA, union rep, COIDA	Review letters (senior cases)	Charges; evidence plan; notice	Opening, evidence, cross-exam, closing	Aggravation; CCMA response	Legislative watch
Chairperson	Pool trained; independence	—	—	Rule on pre-hearing requests	Run sequence; rule on objections	Finding; sanction; reasons	Calibration
HR / Payroll / IT	Monitoring notices; access control	Preserve data; restrict access	Full pay; access controls	Release witnesses; interpreter	—	Final pay; UI-19; certificate	Training
Employee / rep	Acknowledge rules	Report; cooperate	Representations; comply with terms	Prepare; request documents	Plead; cross-exam; testify; close	Mitigation; appeal; refer 30 / 90 days	—
Parallel track		**Protection & disputes track: suspension fairness · grievance · PDA overlap · criminal case · resignation · CCMA**					



Phase 0 — Readiness (standing obligations)

Phase 0 has no case trigger. It must be in place before the first incident, because whether the employee "was aware, or could reasonably be expected to have been aware" of the rule (item 8(2)(b)), and whether the rule was consistently applied (item 8(2)(e)), are fixed by what happened before the conduct.

Step	Organisational action	Owner	Deadline	Form / output	Authority
0.1 Adopt the code and procedure	Board-approved disciplinary code covering: rules and standards; delegations; informal, expedited and formal routes; precautionary suspension and its correspondence; the enquiry sequence in Phase 4; sanctions and warning validity periods; appeal; records; POPIA. Reconcile it with any recognition agreement or bargaining council agreement before adoption.	BOARD, LA, HR	Now; review annually	D01 code and procedure; D02 code table	Code items 2(3), 6(3)–(5); BP
0.2 Communicate the rules	Make rules and procedures available in a manner that is easily understood, in the main workplace languages: induction, intranet, notice boards, contractor and TES onboarding. Some rules are so well known that they need no communication (footnote 3), but dated proof of awareness wins cases.	HR	Now; on hire; on every change	D03 acknowledgement	Code items 6(4), 8(2)(b)
0.3 Delegations	Set who may give informal correction, issue each level of warning, suspend, frame charges, initiate, chair, hear appeals and sign off a dismissal. No one chairs a matter they investigated, initiated or witnessed.	SSO, HR	Now	D04 delegation matrix	Code item 11(1); BP
0.4 Chair, initiator and investigator pool	Trained internal chairs at more than one level; trained initiators; pre-vetted external chairs and investigators with conflict checks; interpreters for the main languages; a secure virtual-hearing platform.	HR, LA	Now	Panel list	Code item 11(4)(d); BP

Step	Organisational action	Owner	Deadline	Form / output	Authority
0.5 Lawful evidence sources	Notices for CCTV, email, device, telematics and access-control monitoring; interception only as RICA permits; an alcohol and drug testing policy with calibrated devices, trained testers and a confirmatory-test route.	ITS, HR, LA	Now	Monitoring notice; testing policy	RICA ss.5–6; POPIA ss.11, 18; OHS Act General Safety Regulation 2A (verify); Code item 21(4)
0.6 Case system and records	Restricted-access case register; evidence store with audit trail; warnings register with expiry dates; precedent register of offences and sanctions to support consistency; correspondence templates D11 to D15; retention schedule.	HR, ITS	Now	D06 register; D34 precedent register	Code items 10, 13; POPIA ss.14, 19
0.7 Unions and collective agreements	Register recognised unions, shop stewards and office-bearers, and any agreed rules on representation, notice periods and discipline of representatives.	HR	Now; on change	Union register	LRA ss.14, 23; Code items 2(3), 11(7)
0.8 TES and contractor arrangements	Contracts require the TES or contractor to run discipline promptly on the client's report and set a protocol for requesting removal from site.	Procurement, LA	Before placement	Contract clause	LRA ss.198, 198A; BCEA threshold R269 600.90 p.a. from 1 May 2026
0.9 Train	Managers: reporting, making safe, the suspension test. Initiators: evidence plans, leading evidence, cross-examination. Chairs: running the sequence, rulings, credibility findings, reasons and sanction. Everyone: non-retaliation and confidentiality.	HR / L&D	At least annually	Attendance records	BP
0.10 Small-business version	Where HR capacity is limited, adopt a simplified procedure that keeps the core: tell the employee what is alleged, give a reasonable chance to respond on the allegation and the sanction, decide on the evidence, give reasons, keep a record.	HR, LA	Now	Simplified procedure	Code items 3, 11(3)

Employee side of Phase 0. Nothing is owed by an employee yet, but the rule-awareness test in item 8(2)(b) is decided here. An employee who was never shown the testing policy is hard to discipline for refusing a test.



Watch. A code the chairperson has never read, or that conflicts with a recognition agreement, is a common source of procedural unfairness. Reconcile before adoption.



Phase 1 — Incident and preliminary investigation

Day 0 is the day any supervisor or manager first learns of the possible misconduct. The preliminary investigation answers three questions by working day 5 (BP): is there a case to answer; does the employee's presence pose a risk that justifies considering suspension; and which route should the matter take. It makes no finding of guilt. The full evidence is gathered in Phase 3.

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
1.1 Make safe	Incident, allegation or complaint: theft, assault, intoxication, safety breach, harassment, dishonesty, absence.	Stop the activity; separate the people involved; call security, medical help or SAPS where needed. Where an employee must leave the site at once (intoxication, violence), send them home on full pay for the rest of the shift and confirm in writing by the next working day. This is a same-day safety measure, not yet a suspension.	LM	Immediately	D05 incident report	OHS Act s.8; GSR 2A (verify); BP
1.2 Report and forward	Any manager learns of possible misconduct.	Forward to the ERO the same day with the facts known, names, and where evidence sits. Do not interview the employee informally, promise an outcome or discuss it with the team.	LM	Same day (BP)	D05	BP
1.3 Secure evidence at risk	Report received.	Secure anything that may be lost: CCTV (overwrite cycles are short), access logs, emails, devices, stock counts, test results. Start the chain-of-custody record; restrict system access where evidence could be deleted.	ERO, ITS	Day 0–1	D17 evidence register	POPIA ss.10–11; RICA; BP
1.4 Log and open the file	ERO receives the report.	Case reference; date first known; employee details; allegation category; status flags (probation, union representative, TES worker, COIDA claimant, discloser).	ERO	Day 0	D06 case register	Code item 13; BP

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
1.5 Classify	Logged.	Misconduct; poor performance; incapacity (ill health, injury, dependency); incompatibility; probation; grievance; operational. Record the reason. If unclear, gather facts before choosing a process.	ERO, LA	Day 0–2	D06 note	Code items 7, 14–21
1.6 Special-status screen	Classified.	Union representative or office-bearer: inform and consult the union before instituting discipline. Protected disclosure by the employee: LA review; run the PDA flow. If the employee refers the matter to the CCMA or council under s.188A(11), stop scheduling the internal enquiry pending the CCMA's jurisdiction ruling (see P3). COIDA claimant: run the COIDA flow. TES worker: report to the TES. Probationer: items 17–18.	ERO, LA	Day 0–2	Screening checklist	Code item 11(7); LRA ss.187(1)(h), 188A(11), 198; RRR Regs reg 10(1)(m)–(n)
1.7 Criminal and reporting screen	Facts suggest a crime.	Decide on a SAPS report. A person in a position of authority who knows, ought reasonably to have known or suspects that an offence of corruption (PRECCA ss.3–16, 20–21), theft, fraud, extortion, forgery or uttering involving R100 000 or more has been committed must report it to a police official (DPCI); failing to report is itself an offence. Discipline need not wait for the criminal case; the tests and standard of proof differ.	ERO, LA	Day 0–2; PRECCA report as soon as possible	Escalation note	PRECCA s.34(1); CL (verify)
1.8 Conflict check	Implicated person is the ERO, a senior manager, an executive, or related to a decision-maker.	Move to the independent route: SSO or the Board chair appoints an external investigator and chair.	ERO, SSO	Day 0–2	Escalation record	Code item 11(1); BP

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
1.9 Appoint the investigator	Facts not clear or not admitted.	Someone independent of the matter and of the future chair. Terms of reference: allegations, scope, preliminary report date, confidentiality, POPIA. External where senior management is implicated. Where the facts are clear and undisputed (an admitted absence, a confirmed test), record that no investigation is needed.	ERO, SSO	Working day 1	D07 appointment and ToR	Code item 11(3); BP
1.10 Initial fact-finding	ToR issued.	Speak to the complainant and key witnesses; take first signed statements; collect the core documents; identify further evidence for Phase 3. Tell the employee the general nature of the allegation and invite, but do not compel, a version; record any refusal. A refusal is not an admission.	INV	Working day 1–4 (BP)	D08 statements	Code item 11(1)–(2); BP
1.11 Preliminary investigation report	Initial facts gathered.	Facts known; evidence for and against; rules implicated; whether there is a case to answer; risk factors relevant to suspension; recommended route and draft charges; evidence plan for Phase 3. No finding of guilt and no sanction recommendation.	INV	Working day 5 (BP)	D09 part A	BP
1.12 Route decision	Preliminary report.	Choose: (a) no case — close and tell the employee in writing; (b) informal correction (item 6(6)); (c) expedited warning process, where a warning is the most severe possible outcome — a short-form version of Phases 4 and 5 without formal evidence-leading; (d) formal enquiry, where dismissal is possible — continue to Phase 3; (e) another process (incapacity, performance, probation, grievance). Check the precedent register.	ERO, LM; SSO for (d)	Working day 5–6 (BP)	D09 part B	Code items 6(6), 8, 10; LRA s.186(2)(b)



Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
1.13 Diarise all clocks	Route chosen.	Calendar: suspension decision and reviews; evidence complete; notice served (with the 48-hour and two-working-day check); enquiry date; outcome letter; appeal; 30-day (restarted at any appeal outcome that upholds a dismissal) and 90-day referral windows; warning expiry dates.	ERO	Working day 6	D06 tracker	LRA s.191; BP

Employee obligations at this stage. Follow a lawful instruction to stop work or leave the site; report what happened truthfully; do not delete records or approach witnesses. An employee may decline to give a statement, but should be told the process may continue on the evidence available.

Hand-offs. LM → ERO (same day). ERO → ITS (evidence and access). ERO → LA (special status, crime). ERO → TU (union representative). ERO → TES. ERO or LA → SAPS. INV → ERO (preliminary report).

Watch. Many weak cases are lost here: CCTV overwritten, a test result not properly recorded, or a manager's "informal chat" that becomes the only account. Preserve first, interview second.

Phase 2 — Suspension decision and correspondence

The suspension question is asked as soon as there is reasonable cause, often before the preliminary report is finished, and is revisited whenever circumstances change. Every step produces a letter: the paper trail is the employer's only defence to an unfair suspension claim.

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
2.1 Consider suspension	Allegation of serious misconduct and a concern about the employee's continued presence.	ERO considers suspension on the facts then known and the investigator's risk assessment. Line managers do not suspend without the ERO and SSO.	ERO	As soon as reasonable cause exists	D10 part A	BP
2.2 Threshold test	Suspension under consideration.	Suspend only if all three are met and recorded. (1) A reasonable belief, on the information available, that the employee committed serious misconduct. (2) An objectively justifiable reason to exclude them: risk of interfering with evidence or witnesses, of repeating the conduct, to safety or property, or a breakdown that makes continued presence untenable. (3) No less restrictive measure would do. Never use suspension to punish, pressure or "manage out".	ERO, SSO	BP within 1 working day of 2.1	D10 part B	CL: *Long v SAB* (CC 2019); *SAPU v National Commissioner of the SAPS* (LC 2005); LRA s.186(2)(b)
2.3 Alternatives	Test partly met.	Consider restricted system or site access, temporary transfer on the same terms and pay, supervised duties, or a no-contact instruction. Record why each was accepted or rejected.	ERO, LM	With 2.2	D10 part C	BP

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
2.4 Notice of intention to suspend	Test met.	Letter (or email with read receipt), in a language the employee understands: the allegation in general terms; why suspension is being considered; that it would be on full pay and is not a finding; an invitation to make written or oral representations, with a representative, by a stated time. Representations are a GBS policy safeguard; they are not a legal precondition after *Long* (CC 2019), so the employer must still record a fair reason (e.g. a reasonable apprehension of interference with the investigation or repetition of the conduct), and full pay limits the prejudice.	ERO	Representations within 24 to 48 hours (BP)	D11	CL: *Mogothle v Premier, North West* (LC 2009); *Long v SAB* [2019] ZACC 7; BP
2.5 Consider representations and decide	Representations received or time passed.	Consider them genuinely; record the reasons for the decision; SSO signs off.	ERO, SSO	Within 1 working day of representations (BP)	D10 part D	CL: *Long*; BP
2.6 Urgent suspension	Immediate risk (violence, threat to evidence, safety).	Suspend at once by letter stating the reason, and invite representations within 48 hours; reconsider promptly and confirm, vary or lift in writing.	ERO, SSO	Same day; reconsider within 2 working days after (BP)	D12 (urgent variant)	CL: *Long* (prior hearing not required); BP
2.7 Suspension letter	Decision to suspend.	Precautionary, not a finding or a sanction; on full pay and benefits; reasons; start date and first review date; conditions (stay off premises and systems unless invited; remain contactable in working hours; attend investigation and enquiry meetings; no contact with named witnesses about the case); company property returned only where needed; how the employee will get access to documents and witnesses to prepare a defence; contact person; EAP; right to raise a grievance. Serve by hand with signed acknowledgement, or by email with delivery proof; if the employee refuses to sign, a witness records service.	ERO, SSO	On the day of suspension	D12	CL: *Long*; LRA s.186(2)(b)



Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
2.8 Pay, benefits and access	Suspension in force.	Continue full remuneration, regular allowances and benefits; no leave deduction. Restrict access; tell only those who need to know.	PAY, ITS, HR	Each pay run	Payroll instruction	BCEA s.34; POPIA s.19; CL: *Long*
2.9 Communication to the team	Suspension in force.	A neutral message that the employee is away from work for a period; no reasons; no speculation. Clients or suppliers told only what is operationally necessary.	LM, ERO	Same day	Script	POPIA; BP
2.10 Review and extension letters	Every 30 days, or earlier when circumstances change.	Review whether the reason still exists and whether the matter is progressing; write to the employee confirming continuation (with reasons and the next review date), variation, or upliftment. Aim to open the enquiry within 30 days of suspension (BP). Public-service employers apply their bargaining council limit (60 days under PSCBC Resolution 1 of 2003, verify).	ERO, SSO	At least every 30 days (BP)	D13	CL: unduly long suspension is an unfair labour practice; BP
2.11 Variation of conditions	Employee needs access to prepare a defence, or conditions are no longer needed.	Allow supervised access to documents, systems or witnesses needed for the defence; confirm in writing.	ERO	Promptly on request	D13 (variation)	Code item 11(4)(b); BP
2.12 Upliftment letter	Reason gone; no charge; outcome reached.	Written notice of upliftment and return date; restore access; brief the team neutrally.	ERO	Promptly	D14	BP
2.13 Decision not to suspend	Test not met, or alternatives suffice.	Letter confirming that the employee is not suspended, any interim measures (transfer, restricted access, no-contact instruction) and the expected conduct during the process.	ERO	With 2.5	D15	BP
2.14 Union representative	Employee is a union representative or office-bearer.	Inform the union before or at the time of suspension and before instituting discipline; consult on the process.	ERO	Before instituting discipline	D25	Code item 11(7)



Suspension correspondence register

Letter	When	Must contain	Form
Notice of intention to suspend	Before suspension (non-urgent)	General allegation; reason for considering suspension; full pay; not a finding; invitation to representations, with a representative, and the deadline	D11
Suspension letter	On the day of suspension	Precautionary nature; full pay and benefits; reasons; conditions; review date; access to prepare a defence; contact person; EAP; grievance right; how served	D12
Urgent suspension letter	Immediate risk	As above, plus invitation to representations within 48 hours and a reconsideration date	D12 (urgent)
Review, extension or variation letter	At least every 30 days; on any change	Outcome of review; reasons for continuing; next review date; any varied conditions	D13
Upliftment letter	When the reason falls away or the matter ends	Return date; restored access; reminder that it is not a finding (if the matter continues)	D14
Confirmation of no suspension	Where suspension was considered and rejected	Interim measures; conduct expected; no-contact instruction if any	D15

Employee obligations at this stage. Make any representations honestly and on time; acknowledge receipt of letters; comply with the suspension conditions; remain contactable. A suspended employee remains an employee and still owes duties of good faith.

Hand-offs. ERO → SSO (sign-off). ERO → PAY and ITS (pay continues; access restricted). ERO → LM (team message). ERO → TU.

Watch. A suspension without a stated reason, without pay, without a review date, or dragging on while nothing happens, can be an unfair labour practice even if the employee is later found guilty.



Phase 3 — Gathering evidence and the notice to attend

The employer bears the onus of proving the misconduct on a balance of probabilities, and of showing that dismissal, if imposed, was fair (s.192(2)). Evidence is gathered against each element of each charge, disclosed to the employee in time to prepare, and presented in Phase 4. The notice to attend is served only once the evidence is substantially complete.

Gathering evidence

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
3.1 Evidence plan	Route (d) chosen.	For each draft charge, list the elements to prove (rule, awareness, conduct, identity, time, place) and the evidence for each; identify gaps and who will obtain what by when.	INI, INV	Working day 6 (BP)	D16 evidence plan	LRA s.192(2); Code item 8
3.2 Documentary evidence	Plan approved.	Collect originals or certified copies: policies and acknowledgements, contracts, timesheets, invoices, stock records, emails, reports, prior warnings. Record source, date obtained and custodian.	INV, ERO	Working day 6–10	D17	BP
3.3 Physical and digital evidence	Plan approved.	Physical items tagged, photographed and stored securely. Digital evidence (CCTV, access logs, telematics, system audit trails, device images, messages) exported with metadata by someone able to explain how it was extracted. Check lawfulness of collection under RICA and POPIA before use.	ITS, INV	Working day 6–10	D17	RICA ss.5–6; POPIA ss.10–11

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
3.4 Witness evidence	Plan approved.	Signed, dated statements in the witness's own words and language; confirm availability to testify; tell witnesses retaliation is prohibited; arrange release from duty for the enquiry date.	INV, LM	Working day 6–10	D08	BP
3.5 Expert evidence	A technical question needs opinion (forensic accounting, IT forensics, handwriting, medical, engineering, test calibration).	Instruct in writing; the expert must state qualifications, method, facts relied on and opinion; be available to testify. The expert is not the decision-maker.	INI, LA	Working day 6–12	Expert brief and report	CL (weight of opinion evidence, verify); BP
3.6 Test results	Alcohol, drug or similar test relied on.	Test certificate, device calibration record, tester's training record, chain of custody for samples and any confirmatory laboratory result.	HR, INV	Working day 6–10	D17	GSR 2A (verify); testing policy
3.7 Lawfulness and admissibility check	Evidence assembled.	Screen for unlawfully obtained evidence (interception, covert recording, private accounts), privileged material and unfair prejudice; LA decides whether to rely on it. Hearsay only where the witness cannot be called and there is good reason; the chair weighs it with caution.	LA, INI	Before the bundle is finalised	LA note	RICA; POPIA; Law of Evidence Amendment Act 45 of 1988 s.3 (by analogy, verify)
3.8 Compile the bundle	Evidence complete.	Indexed and paginated bundle; exhibit list; witness list; copy for the employee party and the chair. Items that cannot be copied (CCTV, physical exhibits) are made available for viewing before the enquiry.	INI, ERO	Working day 12 (BP)	D18 bundle index and witness list	Code item 11(4)(b), 11(5)

Types of evidence

Type	Examples	How to obtain and preserve	Weight and pitfalls
Documentary	Policies, signed acknowledgements, contracts, timesheets, invoices, stock sheets, emails, letters, reports, minutes	Originals or certified copies; note author, date, custodian	Strong if authentic and explained by a witness; unexplained documents carry little weight
Physical (real)	Stolen or damaged goods, tools, weapons, PPE, containers, samples	Tag, photograph, seal, store securely; chain of custody	Strong if custody unbroken; gaps invite a defence of tampering
Electronic and digital	System audit trails, access-control and biometric logs, telematics, fuel-card data, device images, WhatsApp and SMS messages, social media posts	Export with metadata; screenshots dated and identified; a person who can explain the system	Strong if the extraction is explained; beware of edited screenshots and shared logins
Audio-visual and photographic	CCTV, body-cam, dash-cam, voice notes, photographs	Copy the native file before overwrite; record camera, time-stamp accuracy and who viewed it	Very persuasive; identity and time-stamp must be proved; check covert-recording lawfulness
Oral (witness) testimony	Eyewitnesses, complainant, supervisors, investigators	Early signed statements; witness testifies at the enquiry	Tested by cross-examination; credibility, reliability and probabilities decide weight
Expert and opinion	Forensic accountant, IT forensics, handwriting analyst, medical practitioner, engineer	Written brief; report stating method and facts relied on; availability to testify	Weight depends on expertise and reasoning; the chair, not the expert, decides the issue
Forensic and scientific	Laboratory drug results, fingerprints, document examination	Accredited provider; chain of custody for samples	Strong if procedure followed; weak if sample handling cannot be shown
Test results	Breathalyser, saliva or urine screening	Calibrated device; trained tester; signed certificate; option of confirmatory test	A positive screen without calibration or confirmation is easily challenged
Admissions and confessions	Written or recorded admissions, guilty plea, apology emails	Record when, to whom and in what circumstances; confirm voluntariness	Strong if voluntary and informed; worthless if induced by threats or promises
Circumstantial	Presence at the scene, opportunity, unexplained possession, patterns in data	Assemble the facts from other sources	Can prove misconduct if the inference is the most probable one



Type	Examples	How to obtain and preserve	Weight and pitfalls
Hearsay	A statement by someone who does not testify	Obtain the statement; try to call the maker	Admit with caution and good reason; rarely enough on its own to prove a disputed fact
Inspection in loco	Site visit to the scene, line of sight, layout	Chair and both parties attend; record observations	Useful to test witness accounts; record what was seen
Previous disciplinary record	Valid warnings on the file	Warnings register	Relevant only at the sanction stage and only while valid; not evidence of guilt
Character and mitigation evidence	Service record, performance appraisals, testimonials, personal circumstances	From the employee party	Relevant to sanction, not to guilt
Medical evidence	Sick notes, medical reports explaining conduct or absence	From the employee or with consent	May point to incapacity rather than misconduct; handle as special personal information
Polygraph	Polygraph examination results	Only with written consent, by a qualified examiner	Limited weight; never the sole basis for a finding of guilt (CL, verify)

Drafting and issuing the notice to attend

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
3.9 Frame the charges	Evidence substantially complete.	For each charge: the rule or standard, what the employee is alleged to have done, when and where, in plain language and enough detail to understand. Avoid duplicated or rolled-up charges; add alternative charges where needed; state that dismissal is a possible outcome.	INI, LA	Working day 12 (BP)	D19 charge sheet	Code item 11(4)(a), 11(5)
3.10 Appoint chair and initiator	Charges settled.	Chair independent of the matter, senior enough to decide sanction, trained; external where senior management is implicated; signed conflict declaration. Initiator should ideally not be the investigator or a key witness.	ERO, SSO	Before the notice	D20	Code item 11(1)



Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
3.11 Draft the notice	Chair and date fixed.	The notice states: the charges (attached); date, time and venue or virtual link; the chair's name; the right to a fellow employee or union representative; the right to an interpreter; the right to call witnesses, question the employer's witnesses, present evidence and see documents; that the employee will be heard on both guilt and sanction; the possible sanctions including dismissal; what happens if the employee does not attend without good reason; how to ask for documents, a postponement or accommodation; suspension status; and a contact person.	INI, ERO	Working day 12–13 (BP)	D21 notice to attend	Code item 11(4)(a)–(d), 11(5)
3.12 Language and accessibility	Notice drafted.	Translate or explain the notice where needed; arrange reasonable accommodation for disability; check the venue or platform works for the employee.	ERO	Before service	D24	Code item 11(4)(d); EEA s.6
3.13 Issue the notice at least 48 hours before the enquiry	Notice final.	Serve the notice, charge sheet and bundle at least 48 hours before the enquiry starts, and so that at least two full working days fall between service and the enquiry. Allow longer for complex matters, many charges or a large bundle (BP: 5 working days). Serve by hand with signed acknowledgement, or by email or WhatsApp to the employee's known address with delivery proof; if the employee refuses to sign, a witness records the date, time and refusal.	ERO	At least 48 hours and two working days before the enquiry	D22 proof of service	Code item 11(4)(b); BP
3.14 Confirm receipt	Notice served.	Confirm receipt by phone or message and record it; answer questions about process, not merits.	ERO	Within 1 working day of service	D22	BP

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
3.15 Pre-hearing requests	Employee asks for documents, a postponement, legal representation, an interpreter or accommodation.	Chair decides promptly with reasons: relevant, non-privileged documents; a reasonable postponement; legal representation at the chair's discretion, weighing complexity, seriousness and whether the employer is legally represented; an interpreter where reasonably possible; reasonable accommodation.	CHR, ERO	Before the enquiry	D23	Code item 11(4)(b)–(d); CL: *MEC Finance, Northern Province v Mahumani* (SCA 2004); *MEC for Finance, KZN v Dorkin* (LAC 2008); EEA s.6
3.16 Witness arrangements	Enquiry date fixed.	Notify employer witnesses; release the employee party's witnesses from duty on request; arrange a waiting area so witnesses do not hear each other's evidence.	ERO, LM	Before the enquiry	D18	BP
3.17 Pre-dismissal arbitration	Serious or complex matter; employee's written consent given after being told of the allegations, or a collective agreement, or a contract term (employees earning above the BCEA threshold).	With the employee's written consent given after the employee has been told of the allegations (or under a collective agreement, or a contract term for employees earning above the BCEA threshold), request an inquiry by arbitrator on LRA Form 7.19 (employer pays the fee) in place of the internal enquiry. The ruling has the status of an arbitration award and is reviewable under s.145. The employee's own right to refer under s.188A(11) in protected-disclosure cases is dealt with at P3.	LA, SSO	Before the notice	LRA Form 7.19	LRA s.188A(1), (4)(a)–(b), (8), (11); s.145; CL: *Msagala v Transnet* (LC 2017)
3.18 Union representative	Charges against a representative or office-bearer.	Inform and consult the union before instituting discipline; record the consultation.	ERO	Before the notice	D25	Code item 11(7)

Employee obligations at this stage. Read the notice and bundle; prepare; arrange a representative and witnesses in time; ask early, and with reasons, for documents, a postponement or accommodation.

Hand-offs. INV → INI (evidence). INI → LA (lawfulness). ERO → CHR (appointment and bundle). ERO → employee (notice and bundle). ERO → TU. LM → witnesses (release).

Watch. Vague charges ("misconduct", "breach of trust") and notices served too late are the two most common procedural failures. Forty-eight hours is the minimum this flow allows, not a safe harbour: if the bundle is large or the charges are complex, give more time.



Phase 4 — The disciplinary enquiry

The chairperson runs the enquiry in the order below and keeps a record throughout. The employer party (initiator) goes first because it bears the onus; the employee party always has the last word before each decision. Rulings on objections and procedural points are given with brief reasons on the record.

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
4.1 Preliminary arrangements	Enquiry day.	Venue or platform ready; attendance register; interpreter present and sworn to accuracy and confidentiality; recording equipment or scribe; witnesses waiting outside; bundle copies for everyone.	ERO	Before the start	D26 chair's script; D24	BP
4.2 Welcome and introductions	Enquiry opens.	Chair introduces themselves and asks everyone present to state their name and role (employee, representative, initiator, interpreter, scribe, observers). Explains the purpose (to decide whether the employee is guilty and, if so, the appropriate sanction), that the chair has not decided anything in advance, that the proceedings are recorded, and the language to be used.	CHR	Start of enquiry	D27 record	Code items 11(1), 11(4)(d)

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
4.3 Confirm preliminary employee rights were met	Introductions done.	Chair confirms on the record: notice served at least 48 hours and two working days before; notice and charges understood; bundle received and time to study it; right to a fellow employee or union representative explained (representative present, or the right waived); interpreter offered; right to call witnesses and question the employer's witnesses; reasonable accommodation; union consulted for a representative. If any right was not met, the chair decides whether a short adjournment or postponement cures it.	CHR	Start of enquiry	D26 rights checklist	Code item 11(4)(a)–(d), 11(7)
4.4 Preliminary applications	Either party raises a point.	Postponement, recusal of the chair, legal representation, further documents, separation of charges. Hear both sides; rule with reasons.	CHR	Before the charges are read	D23	Code item 11(4)(b); CL: *Mahumani* (SCA 2004); *Dorkin*
4.5 Explain the procedure	Preliminaries resolved.	Chair explains the order of proceedings, that the employer must prove each charge on a balance of probabilities, that the employee may testify or remain silent (but unchallenged evidence may be accepted), that mitigation will be heard separately if there is a guilty finding, and how objections will be handled.	CHR	Before the charges are read	D26	LRA s.192(2); BP
4.6 Read the charges and take a plea	Procedure explained.	Chair or initiator reads each charge; chair confirms the employee understands it; employee pleads guilty or not guilty to each charge. A refusal to plead, or an equivocal plea, is recorded as not guilty.	CHR, EMP	After 4.5	D27	Code item 11(4)(a), 11(5)



Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
4.7 Guilty plea	Employee pleads guilty to a charge.	Chair confirms the plea is informed and voluntary and that the employee understands the possible sanctions; records the facts admitted. Where the admission is incomplete or equivocal, treat it as not guilty. The initiator may lead brief evidence to place the facts on record. Go to the finding (Phase 5) for that charge.	CHR, INI	After 4.6	D27	BP
4.8 Opening statement: employer	Not-guilty plea on any charge.	Initiator briefly outlines the case: what the employer will prove, the witnesses and exhibits it will use. An opening statement is not evidence.	INI	After 4.6	D27	BP
4.9 Opening statement: employee party	Employer's opening done.	Employee or representative outlines the defence: which facts are disputed and why. The employee party may reserve its opening until the start of its own case.	EMP, REP	After 4.8	D27	BP
4.10 Employer evidence in chief	Openings done.	Initiator calls each witness in turn; witnesses give evidence in their own words in answer to open (non-leading) questions; exhibits are identified by the witness who can speak to them.	INI, witnesses	During enquiry	D27	Code item 11(2); BP
4.11 Cross-examination by the employee party	Each employer witness finishes evidence in chief.	Employee or representative questions the witness to test the evidence and must put the employee's version on points in dispute, so the witness can respond. Questions, not speeches; the chair protects witnesses from harassment but does not prevent legitimate testing.	EMP, REP	After each witness's evidence in chief	D27	CL: *President of the RSA v SARFU* (CC 2000) (duty to put version); Code item 11(2)
4.12 Re-examination and chair's questions	Cross-examination finished.	Initiator may re-examine only on matters raised in cross-examination. Chair may ask clarifying questions; both parties may then ask follow-up questions arising.	INI, CHR	After each witness	D27	BP
4.13 Close of the employer's case	All employer witnesses heard.	Initiator closes the case. The employee party may argue that there is no case to answer on a charge; the chair rules with reasons.	INI, CHR	After 4.12	D27	BP

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
4.14 Employee evidence in chief	Employer's case closed.	Employee testifies (or elects not to, recorded) and calls witnesses; the representative leads them with open questions; documents are introduced.	EMP, REP, witnesses	During enquiry	D27	Code item 11(2), 11(4)(b)
4.15 Cross-examination by the employer	Each employee witness finishes evidence in chief.	Initiator questions each witness to test their evidence and puts the employer's version on points in dispute.	INI	After each witness's evidence in chief	D27	CL: *SARFU*
4.16 Re-examination and chair's questions	Cross-examination finished.	Representative may re-examine on matters arising; chair asks clarifying questions; parties may follow up.	REP, CHR	After each witness	D27	BP
4.17 Close of the employee's case	All employee witnesses heard.	Representative closes the case. No new evidence after this point unless the chair allows it for good reason, with the other party able to respond.	REP, CHR	After 4.16	D27	BP
4.18 Closing statements	Both cases closed.	Employer first, then the employee party. Each summarises the evidence, deals with credibility and probabilities, and says what finding it asks for on each charge. No new evidence.	INI, then EMP / REP	After 4.17	D27	BP
4.19 Adjourn for the finding	Closings done.	Chair adjourns to deliberate; tells the parties when the finding will be given (the same day, or within 3 working days, BP).	CHR	After 4.18	D27	BP
4.20 Employee absent	Employee does not attend.	Check proper service and contact attempts; postpone once if there is a reasonable explanation; otherwise proceed in absence, lead the employer's evidence, and record why. Item 11(6) (exceptional circumstances) is a separate exemption and is not relied on for an enquiry in absence.	CHR	On the day	D27	Code items 11(2), 11(4)(b); BP; CL

Employee obligations at this stage. Attend or explain absence; conduct themselves properly; tell the truth; put their version to the employer's witnesses; comply with procedural rulings.



Hand-offs. CHR → ERO (record and adjournment date). ERO → LA (if dismissal is likely). Scribe → CHR (record).

Watch. Two failures recur. An employee party that never put its version to a witness cannot fairly complain later that the witness was not challenged, and a chair who never explained that duty to an unrepresented employee risks a procedural finding. Explain it at 4.5 and remind the employee at 4.11.



Phase 5 — Finding, mitigation, aggravation, sanction and outcome

The finding on guilt and the sanction are separate decisions, each preceded by the parties' submissions and each given with reasons. The employee party is heard on sanction before it is decided (item 11(4)(b)), even where the finding seems to make dismissal obvious.

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
5.1 Deliberate on guilt	Enquiry adjourned after closings, or guilty plea.	For each charge decide: did a rule or standard exist; was it valid and reasonable; was the employee aware of it; did the employee contravene it (item 8(1)–(2)(b)). Where versions conflict, assess each witness's credibility, the reliability of their evidence, and the probabilities, and say which version is more probable and why.	CHR	Same day or within 3 working days (BP)	D28 part A	Code item 8; CL: *SFW Group v Martell* (SCA 2003) (credibility, reliability, probabilities)
5.2 Announce the finding	Deliberation complete.	Reconvene; announce guilty or not guilty on each charge with brief reasons. If not guilty on all charges, the matter ends: lift any suspension (D14) and confirm in writing.	CHR	On reconvening	D28 part A	BP
5.3 Aggravation: employer submissions	Guilty on any charge.	Initiator addresses: the importance of the rule; actual or potential harm; the nature of the job and position of trust; valid warnings on file; absence of acknowledgement; effect on the business and on colleagues; consistency with past cases.	INI	After 5.2	D27	Code items 8(2)(c)–(e), 9(1)–(2), 10
5.4 Mitigation: employee submissions	Employer's aggravation done.	Employee or representative addresses: length of service; clean or old record; acknowledgement and remorse; willingness to comply; personal circumstances and the effect of dismissal; provocation or other context; inconsistency with how others were treated; alternatives to dismissal. The employee may call character witnesses.	EMP, REP	After 5.3	D27	Code items 9(3)–(5), 10

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
5.5 Replies	Mitigation done.	Initiator may reply briefly on points raised in mitigation; the employee party has the final word.	INI, then EMP / REP	After 5.4	D27	BP
5.6 Decide the sanction	Submissions closed.	Apply item 8(2)(f) and item 9: dismissal is generally appropriate only if a continued relationship is intolerable, considering the job, the seriousness and effect of the conduct, whether progressive discipline could prevent recurrence, acknowledgement, and the employee's circumstances. Check consistency with past cases and co-accused (item 10); record any departure. Consider alternatives: final written warning; unpaid suspension or demotion as an alternative to dismissal where the code allows (verify); training; counselling.	CHR	Same day or within 5 working days (BP)	D28 part B	Code items 7, 8(2)(f), 9, 10
5.7 Pronounce the sanction	Sanction decided.	Reconvene (or, if the parties agree, deliver in writing); state the sanction and the reasons, including why lesser sanctions were or were not appropriate; for warnings, the validity period.	CHR	On reconvening	D28 part B	Code items 9, 13
5.8 Communicate the outcome and rights orally	Sanction pronounced.	Chair explains, in a language the employee understands: the sanction and when it takes effect; any internal appeal and its deadline; and the right to refer a dispute (see 5.10). Confirm on the record that it was understood.	CHR	At the enquiry	D27	Code item 11(4)(d); BP



Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
5.9 Written outcome	Oral outcome given.	Letter with the findings on each charge, reasons, sanction, effective date; for warnings, the validity period; for dismissal, notice or pay in lieu (or summary termination for cause), final pay, return of property, last working day; appeal right; referral rights (for dismissal, that the 30 days run from the appeal outcome if an appeal is lodged and the dismissal upheld); CCMA or council contact details. Serve with proof, as for the notice.	CHR, ERO	Within 2 working days (BP)	D29 (short of dismissal); D30 (dismissal)	BCEA s.37(6)(a); Code item 13; BP
5.10 Rights to refer the matter	Every outcome.	Dismissal: refer an unfair dismissal dispute to the CCMA, or to a bargaining council with jurisdiction, within 30 days of the date of dismissal or, if later, within 30 days of the employer's final decision to dismiss or to uphold the dismissal on internal appeal. Sanction short of dismissal, and suspension (unfair labour practice): within 90 days of the act or omission or, if later, of the date the employee became aware of it; an internal appeal does not extend this period. Automatically unfair dismissal: conciliation, then the Labour Court. Late referral needs condonation on good cause. Referral is on the prescribed LRA form (LRA Form 7.11; CCMA Rules, 2023, rule 10) served on the employer.	CHR, ERO	With 5.8 and 5.9	D30	LRA ss.186(2)(b), 191(1)(b), (2), (5); CL: *Bouwer v Supreme Pets CC* [2019] ZALCJHB 303
5.11 Internal appeal (if the code provides one)	Employee lodges an appeal.	Heard by someone more senior and uninvolved, on the record, with new evidence only if it was not available before. Decide within the policy period.	APC	Lodge within 5 working days; decide within 10 working days (BP)	D32	BP

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
5.12 Implement the sanction	Outcome final (or appeal decided).	Dismissal: final remuneration and leave pay; certificate of service; UI-19 and UIF declaration; access revoked; property returned; no deductions without a lawful basis. Other sanctions: warnings register with expiry date; brief the line manager.	PAY, HR, ITS, LM	Next normal pay date or per contract (BP)	D31 termination checklist; D33	BCEA ss.34, 40, 42; UIA and regulations (verify)
5.13 Close the file	Sanction implemented.	File the record, outcome and reasons; update the precedent register; end or lift any suspension; tell the complainant the matter was dealt with, without unnecessary personal information; keep at least until referral, review and appeal periods have run.	ERO	Within 5 working days (BP)	D06; D34	Code item 13; POPIA s.14
5.14 Dispute referral response	CCMA or council referral received.	Diarise; brief LA; prepare the bundle and record; attend conciliation or con-arb; consider settlement. Legal representation at arbitration of a conduct dismissal is restricted (CCMA Rules, 2023, rule 25).	LA, ERO	Per notice of set-down	D36	LRA ss.191, 192; CCMA Rules, 2023

Employee obligations at this stage. Put any mitigation fully; return company property; lodge any appeal within the policy period; refer any dispute within 30 days (dismissal; from the appeal outcome if later) or 90 days (unfair labour practice).

Hand-offs. CHR → ERO (outcome and reasons). ERO → PAY, HR and ITS (implementation). ERO → complainant. LA → CCMA or council.

Watch. The 2025 Code no longer repeats the old Schedule 8 direction to give reasons and remind the employee of referral rights, but both remain good practice and remove later condonation arguments. If you offer an internal appeal, the 30-day period for a dismissal dispute runs from the appeal outcome; state this correctly in the outcome letter.



Phase 6 — Governance and learning

Phase 6 turns individual cases into consistency and control improvements. None of it has a statutory deadline, so it must be fixed in policy or it will be skipped.

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
6.1 Consistency review	Quarterly cycle.	Compare sanctions for like offences across sites and chairs; correct drift; update the code table.	ERO, HR	Quarterly	D34	Code item 10
6.2 Dashboard and reporting	Quarterly cycle.	Cases by category; time from incident to outcome; suspensions and their length; notices served on time; outcomes and appeals; referrals, results and costs.	ERO, SSO	Quarterly	D37	BP
6.3 Root cause	Serious case closed; any lost referral.	Which control failed: the rule, its communication, supervision, evidence, or process.	HR, LA	Within 30 days (BP)	D38	BP
6.4 Code and template refresh	Annually, or on a legal change.	Update the code, the code table, correspondence and the chair's script; re-communicate.	HR, LA	At least annually	D01; D02; D26	Code item 6(4)
6.5 Chair calibration and training	Annually and after overturned outcomes.	Review a sample of records against the Phase 4 sequence and the quality of reasons; retrain chairs, initiators and investigators.	HR / L&D, LA	At least annually	Attendance records	BP
6.6 Legislative watch	Ongoing.	Track: amendments to the Code or the LRA; CCMA Rules, 2023; the Harassment Code; the Protected Disclosures Bill, 2026; commencement of the Cannabis for Private Purposes Act and case law on testing; COIDA RRR Regulations.	LA	Ongoing	Change log	LRA s.203



Parallel track — protection, fairness and disputes

This track opens on day 0 and runs until the referral periods have run. Its events are triggered by what happens to people and by the employee's own choices, not by the case timeline.

Event	Trigger	Organisational action	Deadline	Form	Authority
P1 Unfair suspension claim	Employee refers an unfair labour practice dispute about suspension or other action short of dismissal.	Respond with the Phase 2 record: reason, representations, pay, reviews and time to hearing.	Employee refers within 90 days of the act or of becoming aware of it	D10–D15	LRA ss.186(2)(b), 191(1)(b)(ii)
P2 Grievance by the accused	Grievance about the process, the investigator or the complainant.	Deal with it under the grievance procedure; where it concerns the same issue, the chair may rule on it. Do not let it stall the case indefinitely.	Per grievance procedure	Grievance record	BP
P3 Protected disclosure overlap	Employee made a disclosure before or during the process.	LA review; show independent grounds with a chronology; independent approver for the decision; run the PDA flow. If the employee refers the matter to the CCMA or council under s.188A(11), alleging in good faith that the enquiry is an occupational detriment for a protected disclosure, suspend scheduling of the internal enquiry pending the CCMA's ruling on jurisdiction (CL: *IDC v Modika*, LAC 2026); if the referral is accepted, the inquiry by arbitrator replaces the internal enquiry. A bare allegation is not enough (CL: *Mohlala-Mulaudzi v PPRA*, LC).	Before any decision	PDA flow F18	LRA s.187(1)(h); s.188A(11); PDA ss.3–4

Event	Trigger	Organisational action	Deadline	Form	Authority
P4 Criminal proceedings	Charges laid or pending.	Discipline may proceed. If the employee declines to testify on legal advice, proceed on the evidence and record it. Share information with SAPS only as the law permits.	Ongoing	Coordination note	CL (verify); POPIA ss.26–27, 33 (verify)
P5 Resignation during the process	Employee resigns with notice, or with immediate effect.	With notice: the enquiry may proceed during the notice period. With immediate effect: the Labour Court is divided. *Mtati* (LC 2017) and *Naidoo v Standard Bank* (LC 2019) hold that disciplinary jurisdiction ends; *Coetzee v Zeitz MOCAA* (LC 2018) held that an employer that does not accept the resignation may proceed during the notice period. LA to advise. Record the outcome.	On receipt	LA memo	CL: *Mtati v KPMG Services* (LC 2017); *Naidoo v Standard Bank* (LC 2019); *Coetzee v Zeitz MOCAA* (LC 2018); no LAC ruling located
P6 Incapacity emerges	Evidence of illness, disability, dependency or work injury.	Consider switching to an incapacity process; offer counselling or rehabilitation for dependency; reasonable accommodation; COIDA flow where work-related.	When it emerges	Referral note	Code item 21; EEA s.6
P7 Second enquiry or overriding the chair	Management disagrees with the outcome.	Only in exceptional circumstances where it is fair to do so, and only if the code permits; never simply to get a harsher result.	Before acting	LA memo	CL: *BMW (SA) v Van der Walt* (LAC 2000)
P8 Harassment complainant	Complaint of harassment or violence.	Protective measures that do not disadvantage the complainant (do not move them against their wishes); support; follow the Harassment Code; consider screening arrangements when the complainant testifies.	From day 0	Risk note	EEA s.6(3); Code of Good Practice on the Prevention and Elimination of Harassment in the Workplace, 2022 (GN R.1890, GG 46056, 18 March 2022)

Event	Trigger	Organisational action	Deadline	Form	Authority
P9 Collective misconduct and strikes	Unprotected strike or group misconduct.	Follow item 12: contact a union official at the earliest opportunity; consider representations; issue a clear ultimatum with time to reflect; collective representations may satisfy procedural fairness; do not dismiss those who comply with the ultimatum. Derivative misconduct needs a proper evidential basis.	As events unfold	D35 strike pack	Code item 12; LRA s.68(5); CL: *FAWU v ABI* (LAC 1994, verify)
P10 Constructive dismissal	Employee resigns alleging the employer made continued employment intolerable (e.g. a prolonged or punitive suspension).	LA review; the Phase 2 record is the defence.	Employee refers within 30 days	D36	LRA s.186(1)(e)
P11 Dismissal dispute	Employee refers.	Conciliation, then arbitration (conduct); automatically unfair dismissals to the Labour Court. Late referral needs condonation on good cause.	Employee within 30 days of dismissal or, if later, of the final decision to uphold it on appeal	D36	LRA s.191(1)(b)(i), (2), (5)
P12 Award or judgment	Arbitration award or judgment.	Comply, or apply for review. Reinstatement is the primary remedy unless an exception applies; a procedurally unfair but substantively fair dismissal attracts compensation only (CL: *UPN v Mbatsana*, LAC 2026); compensation up to 12 months (24 for automatically unfair dismissals; 12 for unfair labour practices).	Review within 6 weeks of the award	Litigation file	LRA ss.145, 193, 194

Employee obligations and conduct

An employee protects their own position by knowing the rules, cooperating with a fair process and using it to put their case. The organisation should explain these duties in the code, the suspension letter and the notice to attend, without using them to discourage a defence.

Obligation	When	Consequence if not met	Authority
Know and comply with communicated rules and standards	Always	Discipline, where the rule was valid and the employee aware of it	Code item 8(1)–(2)
Follow a lawful and reasonable instruction to stop work, leave the site or submit to a test under a communicated policy	At the incident	A separate charge of refusing an instruction (not a presumption of guilt on the original charge)	Code item 8; testing policy
Cooperate with the investigation; do not destroy evidence or influence witnesses	Phases 1 and 3	Further charges; supports suspension	Code
Make suspension representations on time; acknowledge letters; comply with suspension conditions; remain contactable	Phase 2	Decision taken without representations; further charges	D11–D15
Study the notice and bundle; arrange a representative and witnesses; make requests early	After service of the notice	Late requests may be refused with reasons	Code item 11(4)(b)–(c)
Attend the enquiry, or explain absence promptly	On the enquiry date	The enquiry may proceed in absence	Code items 11(2), 11(4)(b); BP; CL
Put the employee's version to the employer's witnesses	During cross-examination	Unchallenged evidence may be accepted	CL: *SARFU*

Obligation	When	Consequence if not met	Authority
Tell the truth in statements and at the enquiry	Throughout	Dishonesty charge	Code
Refer any dispute in time	30 days (dismissal); 90 days (unfair labour practice)	Condonation needed	LRA s.191

Rights the organisation must not obstruct. To be told the allegations in enough detail to understand them; at least 48 hours and a reasonable period to prepare; a fellow employee or union representative; a language the employee is comfortable with, where reasonably possible; to see the evidence, call witnesses, cross-examine the employer's witnesses, testify or remain silent; to be heard on sanction; union consultation before discipline of representatives; protection for protected disclosures; POPIA access and correction; no fines or deductions outside BCEA s.34; reasonable accommodation; referral to the CCMA, a bargaining council or the Labour Court.



Hand-offs and interfaces register

Every hand-off carries a confidentiality and fairness risk: send the minimum, keep proof of what was sent, to whom and when, and record it against the case.

Party or system	Trigger	What is handed over	When	Step	Authority
Line manager	Incident	Incident report; evidence locations; witness details	Same day	1.1–1.2, 3.4	BP
IT and security	Evidence risk; suspension	Preservation and export instructions; access restriction and restoration	Day 0 onward	1.3, 2.8, 2.12, 3.3	POPIA; RICA
Investigator	Investigation needed	ToR; access; redacted file	Working day 1	1.9	BP
Senior sign-off	Suspension; formal enquiry; dismissal; conflicted matter	Recommendation and reasons	As triggered	1.8, 1.12, 2.5	BP
Payroll	Suspension; sanction; termination	Full-pay instruction; final-pay schedule	Each pay run; on termination	2.8, 5.12	BCEA ss.34, 40
Expert	Technical question	Written brief and evidence	Working day 6	3.5	BP
Trade union	Representative or office-bearer charged or suspended; strike	Notice and consultation	Before instituting discipline	1.6, 2.14, 3.18, P9	Code items 11(7), 12(3)
TES or contractor employer	Placed worker implicated	Incident report; evidence; removal request	Same day	1.6	LRA s.198
Chairperson	Formal enquiry	Appointment; charges; bundle; code; chair's script	Before the notice	3.10	Code item 11

Party or system	Trigger	What is handed over	When	Step	Authority
Employee	Suspension; notice; outcome	Letters D11–D15; notice, charges and bundle; outcome letter	Per Phases 2, 3 and 5	2.4–2.13, 3.13, 5.9	Code item 11(4)
Interpreter	Language need	Appointment and undertaking	Before the enquiry	3.12, 4.1	Code item 11(4)(d)
SAPS / DPCI	Crime; PRECCA s.34	Report; case number returned	As soon as possible	1.7	PRECCA s.34
PDA Designated Officer	Employee is a discloser	Case flag; chronology	Day 0–2	1.6, P3	LRA s.187(1)(h)
COIDA Administrator / EHW	Employee on a COIDA claim	Case flag; notice of intention before dismissal or pay cut	Before the decision	1.6, P6	RRR Regs reg 10(1)(m)–(n)
AARTO Compliance Officer	Driver's false denial, failure to report a notice, or driving while disqualified	Evidence from the AARTO file	When referred	1.5	AARTO flow 2.8, 5.3
CCMA / bargaining council	Referral; s.188A inquiry; employee's s.188A(11) referral	Response bundle; attendance	Per notice	3.17, P3, 5.14	LRA ss.188A, 191
Board / Remco / Social and Ethics Committee	Quarterly; executive cases	Aggregate report; oversight where implicated	Quarterly	6.2	Governance

Adjacent regimes to check at triage. The GBS PDA, COIDA and AARTO flows; the Employment Equity Act (discrimination, harassment, reasonable accommodation); POPIA (special personal information, including alleged criminal behaviour); RICA (monitoring); the OHS Act and its regulations (intoxication, safety rules); PRECCA and FICA (reporting duties); any sector regulator's fit-and-proper or reporting rules.

Forms register

Thirty-eight forms support the flow, numbered in the order they are used. The existing GBS Disciplinary Code and Procedure (Refreshed DE 2) is shown where it already contains a template, so the gaps are the forms still to draft. None is a statutory form, although the referral form in 5.10 is a prescribed LRA form completed by the employee.

Form	Name	Used at	Existing GBS template (DE 2)
D01	Disciplinary code and procedure	0.1, 6.4	DE 2 (update per section 15)
D02	Disciplinary code table (offences and indicative sanctions)	0.1, 1.12, 6.1	DE 2 Appendix A (update)
D03	Rules communication acknowledgement	0.2	—
D04	Delegation of authority matrix	0.3	—
D05	Incident report and same-day send-home confirmation	1.1–1.2	—
D06	Case register, intake record and deadline tracker	1.4, 1.13, 5.13	—
D07	Investigator appointment and terms of reference	1.9	—
D08	Witness and employee statement template	1.10, 3.4	—
D09	Preliminary investigation report (A) and route decision (B)	1.11–1.12	—
D10	Suspension assessment: consideration, threshold test, alternatives, decision (A–D)	2.1–2.3, 2.5	—
D11	Notice of intention to suspend and invitation to make representations	2.4	—
D12	Precautionary suspension letter (standard and urgent variants)	2.6–2.7	DE 2 Appendix B (suspension paragraph only)
D13	Suspension review, extension and variation letter	2.10–2.11	—

Form	Name	Used at	Existing GBS template (DE 2)
D14	Upliftment of suspension / no-case letter	1.12, 2.12, 5.2	—
D15	Confirmation of no suspension and interim conduct instructions	2.13	—
D16	Evidence plan (elements of each charge and proof)	3.1	—
D17	Evidence register and chain of custody	1.3, 3.2–3.6	—
D18	Bundle index, exhibit list and witness list	3.8, 3.16	—
D19	Charge sheet	3.9	DE 2 Appendix B (partly)
D20	Chairperson and initiator appointment; independence declaration	3.10	—
D21	Notice to attend disciplinary enquiry	3.11–3.13	DE 2 Appendix B (update notice period and rights)
D22	Proof of service and confirmation of receipt	3.13–3.14, 5.9	—
D23	Ruling on pre-hearing and preliminary applications	3.15, 4.4	—
D24	Interpreter appointment and undertaking	3.12, 4.1	—
D25	Union notification and consultation record (item 11(7))	1.6, 2.14, 3.18	—
D26	Chairperson’s enquiry script and preliminary-rights checklist	4.1–4.5	DE 2 Appendix D (partly)
D27	Record of proceedings	4.2–4.20, 5.3–5.8	DE 2 Appendix D (update)
D28	Finding (A) and sanction (B) with reasons	5.1–5.7	DE 2 Appendix D (partly)
D29	Outcome letter: sanction short of dismissal	5.9	DE 2 Appendix C (update referral rights: 90 days, not extended by an appeal)
D30	Notification of dismissal with referral rights	5.9–5.10	DE 2 Appendix E (update referral rights: 30 days from the appeal outcome where an appeal upholds the dismissal)
D31	Termination checklist (final pay, leave, certificate of service, UI-19, access, property)	5.12	DE 2 Appendix E (partly)



Form	Name	Used at	Existing GBS template (DE 2)
D32	Appeal form and appeal outcome	5.11	—
D33	Warning record and warnings register entry	1.12, 5.12	DE 2 Appendix C
D34	Precedent and consistency register	0.6, 5.13, 6.1	—
D35	Unprotected strike pack: union contact, ultimatum, collective representations	P9	DE 2 §9.4 (procedure only)
D36	CCMA / council response pack	5.14, P10–P11	—
D37	Governance dashboard	6.2	—
D38	Root-cause memo	6.3	—



Timeline calendar and liability register

Using internal targets as policy, a routine formal matter runs from incident to outcome in about three to five weeks. The 48-hour notice minimum is an internal rule adopted by this flow; the referral and review periods are statutory; everything else is policy, and must be written into the code to bind.

Case calendar (from first managerial knowledge)

When	Event	Owner	Authority	Type
Day 0	Make safe; report; secure evidence at risk; log	LM, ERO	OHS Act s.8	BP
Next working day	Written confirmation of any same-day send-home on full pay	LM	—	BP
Working day 1	Investigator appointed; suspension considered	ERO, SSO	CL	BP
Working day 1–3	Notice of intention to suspend; representations (24–48 hours); decision and suspension letter	ERO, SSO	CL	BP
Working day 5	Preliminary investigation report	INV	—	BP
Working day 5–6	Route decision; clocks diarised	ERO, SSO	Code items 6(6), 11	BP
Working day 12	Evidence complete; bundle compiled; charges framed; chair appointed	INI, ERO	Code item 11(4)(a)	BP
Working day 13	Notice to attend served with bundle	ERO	Code item 11(4)(b)	BP
At least 48 hours and two working days after service	Earliest enquiry date (longer for complex matters; BP 5 working days)	ERO, CHR	Code item 11(4)(b)	Policy minimum

When	Event	Owner	Authority	Type
Every 30 days of suspension	Suspension review letter; aim to open the enquiry within 30 days	ERO, SSO	CL	BP
Enquiry close + 3 working days	Finding on guilt announced	CHR	Code item 8	BP
Finding + submissions, then up to 5 working days	Sanction pronounced; outcome and rights explained orally	CHR	Code items 9–11	BP
Sanction + 2 working days	Written outcome with referral rights served	CHR, ERO	LRA s.191	BP
Outcome + 5 working days	Internal appeal lodged (if provided)	EMP	Code	Policy
Appeal + 10 working days	Appeal decided	APC	—	Policy
Dismissal (or, if later, appeal outcome upholding it) + 30 days	Last day to refer a dismissal dispute	EMP	LRA s.191(1)(b)(i)	Statutory
Act, or awareness of it, + 90 days	Last day to refer an unfair labour practice (suspension, warning)	EMP	LRA s.191(1)(b)(ii)	Statutory
Award + 6 weeks	Review application	LA	LRA s.145(1)(a)	Statutory
Warning issue + validity period	Warning expires (policy: 3, 6 or 12 months)	ERO	Code	Policy
Closure + 30 days	Root-cause review	HR, LA	—	BP

Liability register

Exposure	Who is exposed	Consequence	Authority
Dismissal without a fair reason or a fair procedure	Employer	Reinstatement, re-employment or compensation up to 12 months' remuneration	LRA ss.188, 193, 194(1)
Procedurally unfair but substantively fair dismissal	Employer	Compensation only, not reinstatement	LRA ss.193(1)(c), 194(1); CL: *UPN v Mbatsana* (LAC 2026)



Exposure	Who is exposed	Consequence	Authority
Automatically unfair dismissal (e.g. protected disclosure, union activity, discrimination, pregnancy)	Employer	Compensation up to 24 months' remuneration	LRA ss.187, 194(3)
Unfair suspension, warning or other action short of dismissal	Employer	Action set aside; compensation up to 12 months' remuneration	LRA ss.186(2)(b), 194(4)
Constructive dismissal	Employer	As for unfair dismissal	LRA s.186(1)(e)
Unfair discrimination or harassment in the process	Employer	Damages and compensation	EEA ss.6, 50
Occupational detriment to a discloser	Employer and the person acting	Automatically unfair dismissal; PDA remedies	PDA ss.3–4; LRA s.187(1)(h)
Fines or unlawful deductions from pay	Employer	Repayment; compliance order	BCEA s.34
Unlawful interception of communications	Person intercepting	Criminal offence; evidence may be excluded	RICA (verify section)
Unlawful processing or disclosure of personal information	Responsible party	Administrative fine; civil claim	POPIA ss.99, 109 (verify)
Dismissing or cutting pay of an injured employee without notice to the Fund	Employer	Breach of the RRR Regulations; weakens fairness	RRR Regs reg 10(1)(m)–(n)



Corrections to existing GBS materials and drafting issues

Comparing the Refreshed DE 2 Disciplinary Code and Procedure against the LRA, the 2025 Code and case law turned up points that should be fixed before client use. This flow already reflects them. Several are policy choices rather than errors; they are flagged because they carry litigation risk.

Corrections to the Refreshed DE 2 procedure

#	Current statement	Where	Correction
1	The company "complies with the requirements set out in Schedule 8 of the Labour Relations Act (Code of Good Practice on Dismissal)"	§1 Policy statement	Schedule 8 was repealed on 4 September 2025. Cite the Code of Good Practice: Dismissal, 2025 (GN 3470, GG 53294), items 6 to 13 for misconduct.
2	"Minimum notice period: 1 working day before the hearing"	§5.5; §8.4 Step 2; Appendix B para 1; Appendix D Q1	Replace with the rule in this flow: at least 48 hours from proven service, including at least two full working days, and longer (BP 5 working days) for complex matters. Item 11(4)(b) requires a reasonable period to prepare; one working day will seldom meet it where dismissal is possible.
3	Line managers may issue up to a final written warning on the same day; no written notice to attend for warnings	§2.4; §5.4; §8.3	Defensible for informal correction and verbal or written warnings where the employee knows the allegation and evidence and genuinely responds (items 6(6), 11(3)). A final written warning is disciplinary action that can be challenged under s.186(2)(b) and may later support dismissal: require at least a short written notice and time to arrange a representative.
4	Expired warnings "can be used as evidence of previous disciplinary history (aggravation)" and "remain on file"	§2.10; §8.4 Step 4(h); §11.4; Appendix A notes; Appendix D	Relying on expired warnings to escalate a sanction undermines the validity periods the code itself sets and is widely treated as unfair. Remove the statement, or confine any use to showing awareness of a rule, on LA advice (CL, verify). Keep the record for retention purposes only.

#	Current statement	Where	Correction
5	Suspension clause of six lines; one suspension paragraph in the notice	§9.1; Appendix B	Add the threshold test, representations, the six letters in the Phase 2 correspondence register (forms D11 to D15, with D12 in standard and urgent variants), full pay, 30-day reviews, access to prepare a defence, upliftment, union notice, and the distinction from unpaid suspension as a sanction.
6	Enquiry order: company's case, then employee's case; finding; mitigation and aggravation	§8.4 Step 4(c)–(i)	Align with Phase 4: add confirmation of preliminary rights, opening statements, re-examination, chair's questions, a no-case application, closing statements, and the order for sanction submissions (employer aggravation, then employee mitigation, employee last word). Explain the duty to put one's version to witnesses.
7	Refusing a breathalyser or drug test: "presumption of guilt"	Appendix A, Alcohol and Drug Offences	Refusal can be separate misconduct (refusing a lawful and reasonable instruction under a communicated testing policy), but it does not create a presumption of intoxication. Reword and charge refusal separately.
8	"Dismissal" as the sanction for a first offence in categories with a wide range of seriousness (inappropriate social media posts; all POPIA processing failures; "failure to obtain proper consent"; unauthorised use of own systems; possession of cannabis on premises)	Appendix A	Items 8(2)(f) and 9 require the sanction to fit the case. Write "up to dismissal", or split categories by seriousness, and state that the table guides and does not decide. Check the cannabis entries against *Prince* (CC 2018), the Cannabis for Private Purposes Act 7 of 2024 (commencement, verify) and *Enever v Barloworld Equipment* [2024] ZALAC 12 (zero-tolerance cannabis policy without evidence of impairment held unfair); frame cannabis rules around impairment and safety-critical roles, not positive tests alone.
9	Absence of 3 or more consecutive days: dismissal	Appendix A, Timekeeping	Distinguish absence (misconduct) from desertion (an intention not to return) and from illness (incapacity). Require documented attempts to contact the employee before any enquiry in absence.
10	Right to an interpreter "for potential dismissal matters"	§2.5	Item 11(4)(d) is not limited to dismissal: give the opportunity to converse in a language the employee is comfortable with, where reasonably possible, including in the expedited process.
11	Legal representation not addressed	§2.5; §8.4	Add a discretion clause: normally a fellow employee or union representative (item 11(4)(c)); the chair may allow legal representation in complex or serious matters (CL: *MEC Finance, Northern Province v Mahumani* (SCA 2004); *Dorkin* (LAC 2008), verify).



#	Current statement	Where	Correction
12	Referral right stated only as "CCMA within 30 days if dismissed"	§2.5; §5.5; Appendix B para 7; Appendix E	Add referral to a bargaining council where one has jurisdiction; unfair labour practice disputes (including suspensions and warnings) within 90 days; automatically unfair dismissals to the Labour Court after conciliation; condonation; and that, where an internal appeal is offered, the 30-day period for a dismissal dispute runs from the appeal outcome (s.191(1)(b)(i)); an internal appeal does not extend the 90-day unfair labour practice period. See step 5.10.
13	Enquiries "will proceed" in the employee's absence	§8.7	Only after proper service and reasonable attempts to contact; the chair considers any explanation and may postpone once (Code items 11(2), 11(4)(b); BP; CL). Item 11(6) is the separate exceptional-circumstances exemption and is not relied on here.
14	"Minimal record-keeping for warnings and final warnings"	§2.10	Item 13 requires records of the nature of the transgression, the action taken and the reasons. Keep warning records brief but complete.
15	Evidence mentioned only generally ("Manager gathers relevant evidence")	§8.4 Step 1	Add the evidence plan, chain of custody, the lawfulness check and disclosure of the bundle with the notice (steps 3.1 to 3.8 and the types-of-evidence table).
16	Demotion and transfer only with written agreement; no unpaid suspension option	§9.3	Decide, with LA, whether the code should permit demotion or unpaid suspension as alternatives to dismissal where dismissal would otherwise be justified (verify). Where offered, record the employee's election.
17	Harassment listed only as a dismissal offence	Appendix A	Cross-refer the Code of Good Practice on the Prevention and Elimination of Harassment in the Workplace (GN R.1890, GG 46056, 18 March 2022; EEA s.54) and add the complainant-protection steps in P8.
18	Digital recording of proceedings "with consent"	§10.1	Consent is not the only lawful basis under POPIA s.11(1); recording on notice for an accurate record is defensible. Announce recordings and keep them secure.
19	Probation and TES workers not addressed	§3 Scope; §9	Add pointers: probation (items 14 to 18, including representations before dismissal or extension) and TES workers (the TES is the employer, s.198(2); the client reports and requests removal).



Drafting issues in the 2025 Code worth raising

- The notice is headed “Code of Practice: Dismissal” and the text “Code of Good Practice: Dismissal”, and the Code is itself headed “Schedule 8” although the notice says its publication repeals Schedule 8. It is unclear whether it takes Schedule 8’s place in the Act or stands alone. Cite it by notice and Gazette number.
- The notice gives s.203(2A) of the LRA (a code issued by the Minister after consideration by NEDLAC) as the power under which the Code was issued; this was confirmed against the notice text on Acts Online in October 2026. The January 2025 draft cited s.203(2), so cite the final notice, not the draft.
- The Code is silent on precautionary suspension, although footnote 2 lists “suspension” among graduated disciplinary measures. This invites confusion between a precautionary suspension on full pay and unpaid suspension as a sanction.
- It sets no minimum notice period and no order of proceedings, leaving both to “a reasonable period of time to prepare” (item 11(4)(b)) and internal policy.
- It gives no guidance on warning validity periods or on the use of expired warnings.
- Item 11 is framed around a decision to dismiss and says nothing about the procedure for warnings, although s.186(2)(b) makes unfair disciplinary action short of dismissal an unfair labour practice.
- The old Schedule 8 direction to give the employee the reason for dismissal and remind them of the right to refer a dispute has not been carried over.
- Item 11(4)(c) mentions only a fellow employee or union representative; it is silent on legal representation and on reasonable accommodation for employees with disabilities.
- Item 7(1) defines a fair reason for misconduct dismissal by reference to intolerability, which is also the sanction test in item 9; the reason and sanction questions are blurred.
- Item 3 does not define a small business.



Revision history — v1.1 (19 October 2026)

Version 1.1 implements every finding of the independent verification and validation review of 15 October 2026 (Critical 0, Major 4, Minor 6, Improvement 5), as approved by the document owner. Items that could not be resolved are listed at the end as open.

#	Finding (severity)	Where	Change made
1	Internal appeal and the 30-day dismissal referral period (Major)	1.13; 5.9; 5.10; Phase 5 obligations and Watch; P11; D29; D30; case calendar; Correction #12	30 days now run from dismissal or, if later, from the final decision to dismiss or uphold the dismissal on appeal (s.191(1)(b)(i); *Bouwer*, LC 2019). The ULP 90 days run from the act or awareness and are not extended by an appeal. Tracker and outcome letters updated.
2	CCMA Rules definition of a “day” (Major)	Section 01 Counting time; 5.14; 6.6	Replaced with CCMA Rules, 2023, rule 3: calendar days, first day excluded, last included, last day moves to the next working day if a Saturday, Sunday or public holiday. Rules named as the 2023 Rules; rule 25 citation confirmed.
3	Code item 11(6) cited for an enquiry in absence (Major)	4.20; obligations table; Correction #13	Authority changed to Code items 11(2), 11(4)(b); BP; CL. Note added that item 11(6) is a separate exceptional-circumstances exemption and is not relied on.
4	Employee’s s.188A(11) pre-dismissal arbitration in protected-disclosure cases (Major)	1.6; 3.17; P3; hand-offs register (CCMA row)	Added branch: on an employee s.188A(11) referral, stop scheduling the internal enquiry pending the CCMA’s jurisdiction ruling; if accepted, the inquiry by arbitrator replaces it (*IDC v Modika*, LAC 2026; *Mohlala-Mulaudzi*, LC).
5	s.188A description incomplete (Minor)	3.17	Consent after notice of allegations, collective agreement or contract term above the threshold; LRA Form 7.19; employer pays; ruling has award status and is reviewable under s.145.
6	*Coetzee* cited for the opposite of its holding (Minor)	P5	States the Labour Court split: *Mtati* and *Naidoo* (jurisdiction ends) against *Coetzee* (employer may proceed if it does not accept the resignation). LA to advise.
7	s.198A threshold left unverified (Minor)	Section 01 Who is the employer; 0.8	BCEA threshold R269 600.90 p.a. from 1 May 2026 inserted (GBS shared confirmed figure).
8	PRECCA s.34 trigger incomplete (Minor)	1.7	Added “or suspects”, the listed offences (ss.3–16, 20–21), report to a police official (DPCI), and that failure to report is an offence.
9	s.203(2) or s.203(2A) (Minor)	Section 01 Legal status; drafting issues	Resolved: Notice 3470 cites s.203(2A) (Acts Online notice text, checked 19 October 2026). Legal status now cites s.203(2A); drafting issue reworded.



#	Finding (severity)	Where	Change made
10	Six letters vs five forms (Minor)	Correction #5	Now "forms D11 to D15, with D12 in standard and urgent variants".
11	Harassment Code citation incomplete (Improvement)	P8; Correction #17	Full citation: GN R.1890, GG 46056, 18 March 2022 (EEA s.54).
12	Unnamed LAC authority on testing (Improvement)	Correction #8	Cites *Enever v Barloworld Equipment* [2024] ZALAC 12; cannabis rules framed around impairment and safety-critical roles.
13	Legal representation authority (Improvement)	3.15; 4.4; Correction #11	Added *MEC Finance, Northern Province v Mahumani* (SCA 2004) before *Dorkin*.
14	Procedural unfairness and remedy (Improvement)	P12; liability register (new row)	Added: procedurally unfair but substantively fair dismissal attracts compensation only (s.193(1)(c), s.194(1); *UPN v Mbatsana*, LAC 2026).
15	Pre-suspension representations as policy, not law (Improvement)	2.4	Stated that representations are a GBS policy safeguard, not a legal precondition after *Long* (CC 2019); fair reason still required.
16	Resolved from section 3 of the review (confirmed accurate)	5.10	LRA Form 7.11 confirmed as the conciliation referral form; "verify" removed.
O1	Open: Dorkin and SAPU citations	2.2; 3.15; Correction #11; section 01	Not verified; *Dorkin* kept with "(verify)". Report notes *Mogothle* relies on *Jansen van Vuuren* rather than *SAPU*; LA to confirm.
O2	Open: other unverified items	0.5; 1.1; 2.10; 3.6; 5.6; Correction #16	PSCBC Resolution 1 of 2003 (60 days), GSR 2A currency, unpaid suspension or demotion as an alternative, and RRR reg 10(1)(m)–(n) remain marked "(verify)".
O3	Open: questions for the author	Sections 01, 0.10, 0.5, 4.1, 5.13	To confirm with GBS: whether client codes provide an internal appeal; bargaining council coverage by sector; headcount for the small-business version; safety-critical roles for testing after *Enever*; retention period for hearing recordings (D27) under POPIA s.14; whether the Code text is headed "Schedule 8".

Sources

- Code of Good Practice: Dismissal, 2025, GN 3470, GG 53294, 4 September 2025 (uploaded).
- GBS Refreshed DE 2 Disciplinary Code and Procedure, Appendices A to E (uploaded).
- GBS PDA, COIDA and AARTO process flows (project files), for format and cross-references.



- Cliffe Dekker Hofmeyr, Employment Law Alert, 4 September 2025; Werksmans, "New Code of Good Practice: Dismissal", February 2026; LabourWise, October 2025 (status and effective date). A search on 29 September 2026 found no amendment to the Code.
- v1.1 corrections (19 October 2026), per the independent V&V review of 15 October 2026: LRA s.191(1)(b)(i) and *Bouwer v Supreme Pets CC* [2019] ZALCJHB 303 (SAFLII); CCMA Rules, 2023 (GN R.3318), rule 3 (Acts Online); 2025 Code text (January 2025 draft, identical per Bowmans) and Notice 3470 (Acts Online, s.203(2A)); Bowmans, Employment case law update July 2026 (*IDC v Modika*, LAC 17 March 2026; *UPN v Mbatsana*, LAC 31 March 2026); LabourGuide (*Mohlala-Mulaudzi v PPRA*; representation); *Msagala v Transnet* [2017] ZALCJHB 370 and CEOSA (LRA Form 7.19); Werksmans, "Resignation with immediate effect – a tale of confusion"; CDH Dispute Resolution Alert, 23 March 2021 (PRECCA s.34); GN R.1890, GG 46056 (LawLibrary); *Enever v Barloworld Equipment* [2024] ZALAC 12 (SAFLII); Norton Rose Fulbright on *Long v SAB*; DLA Piper and RSM (BCEA threshold, April 2026).
- The LRA, BCEA, EEA, POPIA, RICA, the OHS Act and its regulations, PRECCA, the Unemployment Insurance Act, the Law of Evidence Amendment Act, the Interpretation Act, the CCMA Rules and the cases named are cited from general knowledge; verify wording, citations and any later authority before use.

This flow is a working document for legal review, not legal advice.